

Maharashtra State Electricity Distribution Co. Ltd.

Tender Details		19-05-2026 12:38:42
Tender Code	CE-SPD/ ADB/ 2026-27/ T-13 VERSION- 2	
Tender Type	Works Tender	
Type Of Bid	Two Bid	
Description	Development of Distribution Infrastructure & System Strengthening works at Nagpur Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB)	
Estimated Cost (In Lakhs)	52546.85	
Basis of prices	NA	
Tender Validity	NA	
Delivery Requirement (In Months)	NA	
Tender on rate contract basis	NO	
Tender Fee (In INR)	25000	
GST In INR (@18% on Tender Fee: SAC No.	4500	
Total Tender Fee Amount including GST in INR.	29500	
Contact	M S Gawali , 9152303162 ,cespd.msedcl@gmail.com	
Pre-Qualifying Req	As per Bid Document	
Budget Type	Capex	
Scheme Code	0133 - Distribution Infra & stym Strengthening	
Scheme Name	0000	
Department	Special Project	
Office Type	HO	
Location Type	Corporate Office	
Designation	Executive Engineer(Distribution)	
Pre-Bid Meeting Address	Office of the Chief Engineer (Special Projects) MSEDCL, Prakashgarh, 5th Floor, Anant Kanekar Marg, Bandra(E), Mumbai- 400051, Maharashtra, India	
Bid Opening Address	Office of the Chief Engineer (Special Projects) MSEDCL, Prakashgarh, 5th Floor, Anant Kanekar Marg, Bandra(E), Mumbai- 400051, Maharashtra, India	
Version No	2	
Call for Deviation	NO	
Is Annexure C1 Applicable	NA	
Is Manufacturer Applicable	NO	
Is Trader Applicable	NO	
Minimum % of Offered Quantity	NA	
Is Power Supplier Applicable	NO	
Tender Sale Start Date	19-05-2026 13:00	

Tender Sale End Date	09-06-2026 14:00
Bid Start Date	19-05-2026 14:00
Bid End Date	09-06-2026 15:00
Pre-Bid Meeting Date	26-05-2026 15:00
Techno-Commercial Bid opening on	09-06-2026 16:00
Price Bid opening on	Will be declared later
Annexure C1 Opening Date	NA
Winner Selection Date	Will be declared later
Can Bidder Opt EMD Exemption	N

STANDARD BIDDING DOCUMENT

FOR

Full Turnkey Contract

(Design, Supply and Installation)

[MAHARASHTRA STATE ELECTRICITY DISTRIBUTION
COMPANY LIMITED]

Request for Bids

FOR

**Development of Distribution Infrastructure for System Strengthening
Works at Nagpur Zone of MSEDCL, Maharashtra under Power
Distribution Enhancement Program funded by Asian Development Bank
(ADB).**

Key Dates

Date of Release of RFB/ NIT	<i>19/05/2026</i>
Date of Pre-Bid Meeting	<i>26/05/2026 at 15:00 Hours (Noon) (IST)]</i>
Deadline for Submission of Bid	<i>09/06/2026 up to 15:00 Hours (IST)]</i>
Date & Time of Opening of Technical Part of Bid	<i>09/06/2026 at 16:00 Hours (IST)]</i>

Regd. Office: Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051]

Tele. 022-26474211 Extn. 2241

CIN:- U40109MH2005SGC153645

Website: www.mahadiscom.in , Email: cespd.msdel@gmail.com

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

SUMMARY

PART I – BIDDING PROCEDURES AND REQUIREMENTS

Section 1: Request for Bids Notice /Notice Inviting Tender

This Section includes Request for Bids (RFB)/ Notice Inviting Tender (NIT)

Section 2: Eligibility and Qualification Requirements

This Section contains information regarding specific eligibility and qualification requirements applicable for prospective bidders to be considered for further evaluation of their bids.

Section 3: Instructions to Bidders (ITB) and Bid Data Sheet (BDS)

This Section consists of two parts: “Instructions to Bidders” and “Bid Data Sheet (BDS)”. “Bid Data Sheet” contains information specific to procurement that corresponds to and/or supplements and/or modifies “Instructions to Bidders”. This Section provides information to help prospective bidders prepare their bids. Information is also provided on the bidding process - **Single Stage Two-Envelope Bidding Process with e-Procurement**, submission, opening, and evaluation of bids, selection of successful bidder and on the award of contract.

Section 4: Bidding Forms - Technical Part of the Bid

This Section includes the forms for Technical Part of the bids that are to be completed by the Bidders and submitted in accordance with the requirements of Section 3.

Section 5: Bidding Forms - Financial Part of the Bid

This Section includes the forms for Financial Part of the bid including Price Schedules that are to be completed the Bidders and submitted in accordance with the requirements of Section 3.

PART 2 – EMPLOYER’S REQUIREMENTS

Section 6: Employer’s Requirements

This Section specifies the Scope of Work, Specification, the Drawings, and supplementary information that describe the Plant and Installation Services to be procured.

PART 3 – CONDITIONS OF CONTRACT AND CONTRACT FORMS

Section 7: Conditions of Contract

This Section consists of two parts: General Conditions of Contract (GCC) and Special Conditions of Contract (SCC). GCC includes general clauses to be applicable to the Contract and the contents of SCC modify or supplement GCC.

Section 8 - Contract Forms

This Section contains the Letter of Acceptance/ Notification of Award, forms which, once completed, will form part of the Contract. The forms for Performance Security and Advance Payment Security, when required, shall only be completed by the successful Bidder after contract award.

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PART 1

BIDDING PROCEDURES AND REQUIREMENTS

Section - 1 : Request for Bids Notice/Notice Inviting Tender

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

NATIONAL OPEN COMPETITIVE PROCUREMENT

Request for Bids (RFB)/ Notice Inviting Tender (NIT) (Single Stage Two-Envelope Bidding Process with e-Procurement)

Contract title: Development of Distribution Infrastructure & System Strengthening works at Nagpur Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB) Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including supply & works guarantee as per standard bidding documents on single point responsibility, indivisible “Turnkey” contract basis in **Nagpur Zone of MAHARASHTRA STATE.**

NIT/RFB No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Issued on: [19/05/2026]

1. MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED (hereinafter also referred to as the **Employer** or the **Utility**) invites online Bids for Development of Distribution Infrastructure & System Strengthening works at **Nagpur** Zone of MSEDCL, Maharashtra under Power Distribution Enhancement Program funded by Asian Development Bank (ADB). Bidders are advised to note the clauses on eligibility and qualification requirements in Section 2, to be eligible and qualify for being considered for the award of the contract.
2. Bidding will be conducted through national open competitive e-procurement.
3. The RFB document (hereinafter also referred to as bidding document) is available online, for downloading on www.mahadiscom.in from 19/05/2026 to 09/06/2026 (up to 15:00 Hrs). The bidder would be responsible for ensuring that any addenda/ corrigendum/ amendment etc. available on the website/ portal is also downloaded and incorporated.
4. The bidding shall be conducted **under Single Stage Two-Envelope Bidding process with e-Procurement** as specified in Section 3.
5. Under the Single Stage Two-Envelope Bidding process, the Bidder shall not quote, disclose or submit its price in the Technical Part (First Envelope) of its bid or in any other manner, whatsoever, except as part of the Financial Part (Second Envelope) of its bid. In case of any non-compliance in this regard, the bids shall be out-rightly / summarily rejected.

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

6. An incomplete and/or ambiguous and/or conditional bid and/or bid submitted late is liable to be ignored/ summarily rejected.
7. Bid must be submitted online through the e-Procurement/ e-Tendering process specified in Section 3. Any bid or modifications to bid received outside the e-Procurement system will not be considered, unless otherwise specified in Section 3. The Utility shall not be held liable for any delays due to e-Procurement/ e-Tendering system failure beyond its control. Even though the system will attempt to notify the bidders of any bid updates, The Utility shall not be liable for any information not received by the bidder. It is the bidders' responsibility to verify the website for the latest information related to this RFB.
8. Salient details pertaining to this RFB Notice including submission and opening of bid, bid security, cost of documents/ tender fee, if any, for downloading the bidding document, address for communication, etc., are given in the TABLE below.
9. If the Utility office happens to be closed on the specified date of opening of the bids, the bids will be opened on the next working day at the same time and venue or as may be notified by the Utility.
10. Other details can be seen in the RFB document.

TABLE

RFB Notice/ NIT No.	CE-SPD/ADB/ 2026-27/T-13
Contract Title for the Procurement	Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations / Additional Power Transformers, Distribution transformer (New / Aug.), HT Lines and other allied works, including works guarantee as per standard bidding documents under the on single point responsibility, indivisible “Turnkey” contract basis in System Strengthening works at Nagpur Zone OF MAHARASHTRA
Brief description of Scope of Works	The scope of work under the subject package includes site survey, planning, design, engineering, assembly manufacturing, testing, supply, loading, transportation, unloading, insurance, delivery at site, handling, storage, installation, testing, commissioning and documentation of all items/material required to complete the works of System Strengthening works New Substations, New 33 kV Lines, New 22 KV Lines, New 11 kV Lines, Augmentation of Power TR. / Sub-station and 33 kV, 22kV, 11kV line, Renovation works, Distribution transformer (New / Aug.) LT Line, HT/LT Under-ground cabling works. GIS Mapping and Asset Tagging And any other allied work at Nagpur Zone of MAHARASHTRA STATE
Mode of Procurement/Bidding	Singe Stage Two-Envelope Bidding Process with e-Procurement/ e-Tendering (option of composite package /sub package)
Date of Release of RFB Notice/ NIT	19/05/2026
Date & Time of Pre-Bid Meeting	26/05/2026 @ 15:00 Hrs (Noon) (IST)]
Last date of Bid Submission	09/06/2026 up to 15:00 Hours (IST)]
Date of Opening of Technical Part (First Envelope) of the bid	09/06/2026 at 16:00 Hours (IST)]
Opening of Financial Part (Second Envelope) of the Bid	To be notified later. Financial Part of bids from only those bidders shall be opened who, upon evaluation of Technical Part of the bids, are found eligible and qualified, and whose bids are found responsive to bidding documents.

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Location of Submission/ Opening of Bids, as applicable	Maharashtra State Electricity Distribution Company Limited, Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051
Type of Procurement	Plant (Design, Supply and Installation)
EMD/ Bid Security	All bids must be accompanied by a bid security of amount 2% of tender value or Rs 5 (five) crore, whichever is lower. MSEDCL Bank Account No. required for submitting Bank Guarantee Beneficiary Name: MSEDCL Name of Bank- Bank of Maharashtra Bank Branch- FORT, Mumbai. Bank Account NO.: 20045003931 IFSC Code- MAHB0000002 <i>Bid Securing Declaration to be submitted as specified in Section I and 3.</i>
Performance Security	The Performance Security amount is 3% of Contract Price
Bid Validity period	The bid validity period will be [180] days from date of Opening of Technical Part of the Bid.
Time for Completion	The Time for Completion of the works is: Twenty-Four Months from the Effective Date of the Contract
Address for Correspondence	<u>[(Mr. Manik Gavali, Executive Engineer, Special Project Section Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051</u> <u>(Mobile no 9152303162)</u>
Contact Details of E- Procurement Portal Support Team:	<u>[(Mr. Manik Gavali, Executive Engineer, Special Project Section Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051</u> <u>(Mobile no 9152303162)</u>

Section – 2 : Eligibility and Qualification Requirements

1. Eligibility Requirements:

Technical Part of the Bid shall be evaluated, inter-alia, as per **Section 3** on the basis of their responsiveness to and Bidder's compliance with the Eligibility Requirements specified herein below:

- 1.1. Only firm that is a private entity, a state-owned entity or an institution, legally established in India to undertake design, supply and installation of the works mentioned in the scope of works under this RFB Document/ bidding document are eligible to bid (submit their Bid in response to RFB Notice/ NIT). The Bidder (alternatively referred to as the Contractor/Bidder) may be a proprietorship concern or a partnership firm operating in India, or a registered entity in India under the Companies Act, 1956, 2013 or LLP Act.
- 1.2. Any combination of such entities eligible as per 1.1 above, is also eligible to bid in the form of a joint venture (JV) as defined in **Section 3**, under an existing agreement. In the case of a joint venture, the number of members of the JV shall not exceed 03 (three) and all members shall be jointly and severally liable for the execution of the entire Contract in accordance with the Contract terms. The JV shall nominate a Representative who shall have the authority to conduct all business for and on behalf of any and all the members of the JV during the Bidding process and, in the event the JV is awarded the Contract, during contract execution. In case of JV, the bidding JV (also referred to as the Bidder) shall submit a Joint Deed of Undertaking in Technical Part of its bid, as per the format enclosed in **Section 4** of the RFB/ bidding document. No change in the structure / constitution of the JV shall be permitted at any stage during bidding or execution of the Contract in the event of award.

- 1.3. As an exception to the foregoing Clause 1.1 & 1.2 above:

Sanctions: Firms, which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above, blacklisted by the Employer/ CPSEs or any of their subsidiaries / Government of India/ Government of Maharashtra / any Regulatory Authority, as on the date of submission of Bid, are not eligible to bid.

- a. **Suspension:** Firm which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above, under suspension by the Employer as the result of the operation of a Bid-Securing Declaration or Proposal-Securing Declaration, shall not be eligible to bid.
- b. **Prohibitions:** Firms, which includes individual or any of the JV members in case of bidding Joint Venture as per Clause 1. 2 above and individuals of a country or goods / works / services manufactured/ produced in a country shall be ineligible, if as a matter of law or official regulations, the Government of India prohibits commercial relations with that country.

- 1.4. To be eligible to bid, the Bidders must ensure compliance to the following, failing which they shall not be eligible:

I. Any bidder from a country which shares a land border with India will be eligible to bid only if the bidder is registered with the Competent Authority.

II. "Bidder" (Seller / Service Provider) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

VI. The successful bidder shall not be allowed to sub-contract works to any Contractor/Bidder from a country which shares a land border with India unless such Contractor/Bidder is registered with the Competent Authority.

- 1.5. Bidding is open to all and local Bidders will be required to demonstrate that they meet the Local Content requirements below. Eligible 'Class -I local supplier' are required to demonstrate the following:

- (i) The latest Public Procurement (Preference to Make in India) Order issued by Department for promotion of Industry and Internal Trade (DPIIT), Ministry of Commerce and Industry, Government of India,
- (ii) #‘Public Procurement (Preference to Make in India) to provide for Purchase Preference (linked with local content) in respect of Power Sector’ order dated 28/07/2020 issued by Ministry of Power (MoP Order)

Or

Public Procurement (Preference to Make in India) Order, 2017- Notification of Telecom products, Services or Works issued by Department of Telecommunications (DoT), Ministry of Communications, Government of India, vide Notification dated 29.08.2018 (DoT Order)

Or

and any subsequent modifications/Amendments, if any.

As per the aforesaid orders:

‘Class –I local supplier’ means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for ‘Class-I local supplier’. Presently, the local content requirement to categorize a supplier as ‘Class-I local supplier’ is minimum 50%*.

Further, for the purpose of purchase preference under the PPP-MII Order:

‘Local Content’ means the amount of value added in India which shall be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.

The [‘Class –I local supplier shall give a self-certification in is Technical part of the Bid in the format given in **Section 4** of RFB document, indicating the percentage of Local Content and certifying that the item offered meets the Local Content requirement for ‘Class –I local supplier’, as the case may be, and shall give details of the location(s) at which value addition is made. Further, in case of procurement above Rs. 10 Crore, the ‘Class –I local supplier shall provide a certificate from statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of Local Content. False declaration regarding Local Content by the bidder shall be a transgression of Integrity Pact, if applicable, and as per clause ITB 2 of Section, RFB document, and action shall be taken in accordance therewith and in line with the provisions of the above Orders. Further, in case of price reduction during e-Reverse Auction, if envisaged as per Section 3 of RFB document, or for any other reason including matching L1 price pursuant to the purchase preference extended, the revised prices shall be so as to ensure that classification of the bidder ‘Class –I local supplier’ remains unchanged.

1.6. Employer reserves the right to request for any additional information and also reserves the right to reject the Proposal of any Bidder, if in the opinion of Employer, the qualification data is incomplete or the Bidder is found not qualified to satisfactorily perform the Contract.

1.7. The bidder/JV should provide detailed information on any litigation either in the court of law and / or arbitral panel. The information shall be certified by Chartered Accountant & shall be submitted by Bidder along with submission of technical bid.

All pending litigations shall in total not be more than fifty percent (50%) of the bidder's net worth.

In case amount is more than 50% of the bidder's net worth, bidder shall be disqualified.

*Litigation means it includes litigation filed against the bidder & litigation filled by the bidder;

OR

If any type of legal litigation against MSEDCL is pending in any court/ Forum against/by the bidder or its sister Concern/ Director/ Partner/ Proprietor, then MSEDCL reserves the right to reject partly or fully their bid without assigning any reasons thereof.

1.8. For the purposes of these Bidding Documents, the words “facilities,” “plant and equipment,” “installation services,” etc., shall be construed in accordance with the respective definitions given to them in the General Conditions of Contract.

2. Qualification Requirements

2.1. Technical:

2.1.1. For the purpose of this particular bid, bidder shall meet the following minimum criteria in past 7 years up to 31/03/2026.:

i. Experience in similar work (as per clause 2.1.3 mentioned below) under **single** contract, costing not less than 70% of the tender cost excluding GST.
The costing of the works under the above contract should be of completed works only under the contract.

Or

ii. Experience in similar works (as per clause 2.1.3 mentioned below) under two **contracts**, each costing not less than **40% of the tender cost excluding GST**.
The costing of the works under the above contract should be of completed works only under the contract.

Or

iii. Experience in similar works (as per clause 2.1.3 mentioned below) under three **contracts**, each costing not less than **30% of the tender cost** excluding GST.-The costing of the works under the above contract should be of completed works only under the contract.

2.1.2 Collectively the JV partner should meet the criteria mentioned in 2.1.1 above. However, each JV partner should have completed at least one contract costing not less than **30% of the tender cost** excluding GST.

For illustration, the various cases possible, along with the number of contracts and the minimum amounts for each of scenarios are shown below:

Case 1: JV of two (2) partners

Scenario		Partner 1	Partner 2
1. Any One partner fully meets the qualification requirements	A)	1 contract of minimum 70% of the cost	1 contract of minimum 30% of the cost
	B)	2 contracts, each of minimum 40% of the cost	1 contract of minimum 30% of the cost
	C)	3 contracts, each of minimum 30% each of the cost	1 contract of minimum 30% of the cost
2. Both partners put together meet the qualification requirements	A)	1 contract of minimum 40% of the cost	1 contract of minimum 40% of the cost
	B)	2 contracts of minimum 30% of the cost	1 contract of minimum 30% of the cost

Case 2: JV of three (3) partners

Scenario		Partner 1	Partner 2	Partner 3
1. Any One partner fully meets the qualification requirements	A)	1 contract of minimum 70% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
	B)	2 contracts, each of minimum 40% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
	C)	3 contracts, each of minimum 30% each of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost
2. All partners put together meet the qualification requirements	A)	1 contract of minimum 40% of the cost	1 contract of minimum 40% of the cost	1 contract of minimum 30% of the cost
	B)	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost	1 contract of minimum 30% of the cost

2.1.3 For the purposes of satisfaction of Technical Requirement, similar works refers to:

- a) Project(s) execution in one or more sectors below :-
 - 1) Electrical Transmission sector
 - 2) Sub-transmission sector
 - 3) Electrical distribution sector

In above sectors, type of construction works undertaken should be of the nature of one or more of the following:-

- 1) EHT lines
- 2) HT lines
- 3) LT lines
- 4) Distribution transformers
- 5) Substations

- b) Notwithstanding the clause 2.1.3(a) above, experience in only LT lines would not be considered eligible.

The experience of the bidder as part of Joint venture or consortium or a sub-Contractor / Bidder will be considered for the purpose of evaluation as per the clause 2.1.1, 2.1.2 and 2.1.3 above only in case where the bidder is able to provide approval / acceptance of the mentioned works from the end-customer or the utility whichever is applicable.

2.2. Financial/ Commercial:

2.2.1. The Net Worth of the bidder must be positive for the each of the last three Financial Years. Net worth means the sum total of the paid-up capital and free reserves (excluding reserves created out of revaluation) reduced by aggregate value of accumulated losses (including debit balance in profit and loss account for current year) and intangible assets.

2.2.2. Minimum Average Annual Turnover (MAAT) of the Bidder for best three years out of last five financial years of the bidder should not be less **than** 30% of estimated tender cost.

2.2.3. Bidder must have liquid assets (LA) and/ or evidence of access to or availability of fund based credit facilities of not less than 10% of estimated tender cost and the Banker should confirm that the Credit facility is earmarked for the Works specified under Bid on receipt of the Bid. Liquid Assets would include unencumbered cash (and equivalents), bank deposits with maturity less than 365 days, securities that can be freely traded or maturity less than 365 days and receivables which has general certainty of getting received minus payables which has general certainty of getting paid.

2.2.4. In case a bid is submitted by a Joint Venture (JV), all the partners of the JV shall meet, individually, the qualification set forth at para 2.2.1 above and collectively the requirement of para 2.2.2 & 2.2.3 above. The figures for each of the partner of the joint venture shall be added together to determine the bidder's compliance with the minimum qualifying criteria set out in para 2.2.2 & 2.2.3 above; however, in order for a joint venture to qualify, the partner(s) of joint venture must meet the following minimum criteria:

At least one partner shall meet, not less than 40% of the minimum criteria given at Para 2.2.2 & 2.2.3 above.

AND

2.2.4.1. Each of the other partner(s) shall meet not less than 25% of the criteria given at Para 2.2.2 & 2.2.3 above.

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2.2.5. Failure to comply with requirement mentioned in 2.2.4 will result in rejection of the Joint Venture's bid.

2.2.6. The lead partner shall be authorized to incur liabilities and receive instruction for and on behalf of any and all partners of the joint venture and the entire execution of the contract including receipt of payment shall be done exclusively through the lead partner. This authorization shall be evidenced by submitting in Technical Part of its bid, a power of attorney signed by legally authorized signatories of all the partners as per pro-forma in Section 4 of the RFB/ bidding documents

2.2.7. All partners of the joint venture shall be liable jointly and severally for the execution of the contract in accordance with the contract terms and a copy of the agreement entered into by the Joint Venture partners having such a provision shall be submitted with the Technical Part of the bid. A statement to this effect shall be included in the authorization mentioned under para 2.2.6 above as well as in the Bid Form and in the Contract Form (in case of a successful bid);

2.2.8. The Bidder shall also furnish following documents/details with Technical Part of its bid:

2.2.8.1. A certificate from banker (as per specified format) indicating various fund-based limits sanctioned to the bidder and the extent of utilization as on date. Such certificate should have been issued not earlier than three months prior to the date of bid opening. Wherever necessary, the employer may make queries with the Bidders' bankers.

2.2.8.2. The complete annual reports together with Audited statement of accounts of the company for last five years of its own (separate) immediately preceding the date of submission of bid. In case audited statements of the last financial year are not available the audited statements of the preceding five years can be submitted.

2.2.8.3. Note:

2.2.8.3.1. In the event the bidder is not able to furnish the information of its own (i.e. separate), being a subsidiary company and its accounts are being consolidated with its group/holding/parent company, the bidder should submit the audited balance sheets, income statements, other information pertaining to it only (not of its group/Holding/Parent Company) duly certified by any one of the authority [(i) Statutory Auditor of the bidder /(ii) Company Secretary of the bidder or (iii) A certified Public Accountant] certifying that such information/documents are based on the audited accounts as the case may be.

2.2.8.3.2. Similarly, if the bidder happens to be a Group/Holding/Parent Company, the bidder should submit the above documents/information of its own (i.e. exclusive of its subsidiaries) duly certified by any one of the authority

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mentioned in Note - 2.2.8. 3.1 above certifying that these information/ documents are based on the audited accounts, as the case may be.

2.2.8.4. Subcontractors' technical experience and financial resources shall not be taken into account in determining the Bidder's compliance with the qualifying criteria.

2.2.8.5. Work experiences of the bidder as per above shall be considered only if the works have been executed under Govt./Semi-Govt./autonomous body of Central/State Govt./Electricity Power Utility/ Power Deptt. in India only.

2.2.8.6. The bidder should possess the necessary license as applicable for the execution of works in this RFB.

However, in case the bidder does not hold the license for the given State, then the bidder should possess the equivalent license for any one State in India and post-award the bidder is required to acquire the necessary license for the given State within a period of two months.

In case bid is submitted by Joint Venture, all partners whose scope as per the delineation of responsibilities amongst JV partners includes execution of Works or part thereof at Site, should possess and/or acquire the necessary license as stated above.

Section - 3: Instructions to Bidders and Bid Data Sheet

A. Instructions to Bidders General

- 1.1 In connection with the Notice Inviting Tenders (NIT)/ Request for Bids (RFB) Notice specified in **Bid Data Sheet**, the Employer (named in the **Bid Data Sheet**) issues this RFB/ Bidding Document for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), as specified in **Section 6**, Employer's Requirement. The name and identification of the package for award of contract under his NIT/RFB is specified in **Bid Data Sheet**.
- 1.2 Throughout this bidding document:
 - (a) **"Affiliate(s)"** means an individual or an entity that directly or indirectly controls, is controlled by, or is under common control with the Bidder.
 - (b) **"Applicable Law"** means the laws and any other instruments having the force of law in India, as may be issued and in force from time to time.
 - (c) **"Employer"/ "Utility"** means the entity, as briefly described in **Bid Data Sheet**, that has issued the Request for Bids for award of the Contract for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), as specified in **Section 6**, Employer's Requirement.
 - (d) **"Bid"** means the Technical Part (first Envelope) and the Financial Part (Second Envelope) of its bid submitted by the Bidder who participates in the bidding in response to Notice Inviting Tenders (NIT)/ Request for Bids (RFB) Notice. It is alternatively also referred to as the tender.
 - (e) **"Bid Data Sheet (BDS)"** means an integral part of the **Instructions to Bidders (ITB) Section 3**, that is used to reflect issues, details and conditions specific to the procurement, to supplement and/or modify the provisions of ITB.
 - (f) **"Bidder"** means a legally-established professional firm or an entity that may submit its Bid to the Employer in response to the RFB Notice/ NIT issued by the Employer, to provide/ provision the Plant to the Employer.
 - (g) **"Contract"** means a legally binding written instrument entered between the Employer/ Utility and the successful Bidder, in the manner and in accordance with the RFB document/ bidding documents, for the Design, Supply and Installation of Plant (also referred to as the Scope of Work), and includes the Letter of Acceptance/ Notification of Award, the Contract Agreement, the General Conditions of Contract (GCC), the Special Conditions of Contract (SCC), and the Appendices and the documents attached thereto.
 - (h) **"Day"** means a calendar day, unless otherwise specified as **"Business Day"**. A Business Day is any day that is an official working day of Employer. It excludes Employer's official public holidays.
 - (i) **"Government"** means the government of India, State Government or Local Government as applicable.

- (j) **“In writing”** means communicated in written form (e.g. by mail, e-mail, fax, including that distributed or received through the electronic-procurement system used by Employer).
- (k) **“Plant”, “Installation Services”, “Facilities” (also referred hereinafter as “Works”)** used herein shall have the same meaning as ascribed to them in **Section 7**.
- (l) **“ITB”** (this **Section 3** of the RFB/ Bidding Documents) means the Instructions to Bidders that, along with other Sections, provides the Bidders with all information needed to prepare and submit their Bids.
- (m) **“Joint Venture (JV)”** means an association with or without a legal personality distinct from that of its members, of more than one entity/ firm where one member has the authority to conduct all business for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to Employer for the performance of the Contract. Whether or not bidding by Joint Venture is permitted, is specified in **BDS** and in **Section 2**.
- (n) **“RFB”** means the Request for Bids issued by Employer for the selection of the successful Bidder from amongst the bids submitted by bidders(s) who bid against and in response to the Request for Bids Notice (alternatively referred to as **Notice Inviting Tenders (NIT)**) under Two Envelope Single Stage Bidding Process.
- (o) **“Sub-contractor”** means an entity to whom the Contractor subcontracts any part of the Works as per the applicable provisions of the Contract while the Contractor remains responsible to Employer for the whole and successful performance of the Contract.
- (p) Capitalised terms used herein but not defined specifically shall have the meaning as ascribed to them in Section 5 and Section 6, and elsewhere in RFB/bidding Document.
- (q) If the context so requires, “singular” means “plural” and vice versa.
- (r) **“TPQMA”** means a “Third Party Quality Monitoring Agency” that the Nodal Agency engages to carry out Pre Dispatch inspection of materials at manufacturing facilities of Contractor or Sub Contractor / Sub-Vendors of the Contractor and to carry out the inspection in the field of the works carried out.

2- Fraud and Corruption

- a. The Employer requires compliance with the Anti-Corruption Guidelines/ Laws in force of the relevant Government/ its instrumentalities/ Utility.
 - 1. requires that bidders (applicants/proposers), consultants, contractors and suppliers; any sub-contractors, sub-consultants, service providers or suppliers; any agents (whether declared or not); and any of their personnel, observe the highest standard of ethics during the procurement process, selection and contract execution, and refrain from Fraud and Corruption.
 - 2. To this end, MSEDCL: Defines, for the purposes of this provision, the terms set forth below

as follows:

- (a) “Corrupt practice” is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
- (b) “Fraudulent practice” is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation;
- (c) “Collusive practice” is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;
- (d) “Coercive practice” is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;
- (e) “Obstructive practice” is deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or
- (f) Rejects a proposal for award if the MSEDCL determines that the firm or individual recommended for award, any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/ or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- (g) In addition to the legal remedies set out in the relevant Legal Agreement, may take other appropriate actions,
- (h) Pursuant to the Anti- Corruption Laws/ Guidelines and in accordance with due process, MSEDCL, may sanction a firm or individual, either indefinitely or for a stated period of time, including by publicly declaring such firm or individual ineligible (i) to be awarded or otherwise benefit from contract awarded by MSEDCL or its subsidiaries/ affiliates, financially or in any other manner; (ii) to be a nominated sub-contractor, consultant, manufacturer or supplier, or service provider of an otherwise eligible firm being awarded a contract MSEDCL or its subsidiaries/ affiliates; and (iii) to receive the proceeds of any loan made by the REC or otherwise to participate further in the preparation or implementation of any REC-financed project.

3. Any occurrence, or suspected occurrence, of a Prohibited Practice in the procurement, award, or implementation of a Bank-financed contract is dealt with in accordance with the provisions of the Bank’s Policy on Prohibited Practices. Suppliers, contractors, service providers and consultants selected pursuant to the Bank’s Procurement Instructions for Recipients, as well as the Recipient shall fully cooperate with the Bank (or a cofinancier undertaking an investigation pursuant to the Bank’s Procurement Instructions for Recipients) in any investigation into an alleged Prohibited Practice to be carried out pursuant to the Policy on Prohibited Practices, and permit the Bank or its representative (including such co-financier) to inspect such of their accounts and records as may be relevant for such investigation and to have such records and accounts audited by the auditors appointed by the Bank.

a- Bidders are also required to sign and furnish in the Bid, duly signed Integrity Pact if so specified in **ITB 10.2.8**.

- 3.1 The eligibility and qualification requirements against the RFB are given in **Section 2**, for the Bidders and the Plant/ Installation Services/ Works. Bids, if any, from Bidders and/or offering Plant/ Installation Services/ Works not complying with the same shall be out rightly rejected and shall not be considered for evaluation
- 3.2 Bids submitted by the Bidders shall be evaluated to ascertain their compliance with Eligibility and Qualification Requirements, based on the details/ information/ documentary evidence pertaining to the same to be submitted in the Technical Part, as specified in ITB. All Bidders shall provide in **Section 4**, Bidding Forms, requisite details and documents in support of meeting the Eligibility and Qualification Requirements. A Bid shall be rejected if the Bidder submitting the Bid, fails to meet the Eligibility and Qualification Requirements. Bids submitted by those Bidders who meet the Eligibility and Qualification Requirements shall be shortlisted for further evaluation of their bids.
- 3.3 A Bidder shall provide such additional documentary evidence of eligibility and/or qualification satisfactory to the Employer, as the Employer shall reasonably request.
- 4.1 A Bidder shall not have a conflict of interest. Any Bidder found to have a conflict of interest shall be disqualified. A Bidder may be considered to have a conflict of interest for the purpose of this Bidding process, if the Bidder:
- (a) Directly or indirectly controls, is controlled by or is under common control with another Bidder; or
 - (b) Receives or has received any direct or indirect subsidy from another Bidder; or
 - (c) Has the same legal representative as another Bidder; or
 - (d) Has a relationship with another Bidder, directly or through common third parties, that puts it in a position to influence the Bid of another Bidder, or influence the decisions of the Employer regarding this Bidding process; or
 - (e) Any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the works that are the subject of the Bid; or
 - (f) Any of its affiliates has been hired (or is proposed to be hired) by the Employer for the Contract implementation; or
 - (g) has a close business or family relationship with a professional staff of the Utility (or of the project implementing agency) who: (i) are directly or indirectly involved in the preparation of the bidding document or specifications of the Contract, and/or the Bid evaluation process of such Contract; or (ii) would be involved in the implementation or supervision of such Contract unless the conflict stemming from such relationship has been resolved in a manner acceptable to the Employer throughout the Bidding process and execution of the Contract.
- 4.2 A firm that is a Bidder (either individually or as a JV member) shall not participate as a Bidder or as JV member in more than one Bid under the single tender. Such participation shall result in the disqualification of all Bids under the tender in which the firm is involved.

However, this does not limit the participation of a Bidder as subcontractor in another Bid or of a firm as a subcontractor in more than one Bid.

B. Contents of Bidding Document

- 5.1 The bidding document (also referred to as the RFB document) consist of Parts 1, 2, and 3, which include all the sections indicated below, and should be read in conjunction with any Addenda/ Corrigenda/ Amendments issued in accordance with **ITB 7**.

PART 1 Bidding Procedures and Requirements

- Section 1 - Request for Bids Notice
- Section 2 - Eligibility and Qualification Requirements
- Section 3 - Instructions to Bidders and Bid Data Sheet
- Section 4 - Bidding Forms - Technical Part of the Bid
- Section 5- Bidding Forms - Financial Part of the Bid

PART 2 Employer's Requirements

- Section 6 – Employer's Requirement

PART 3 Conditions of Contract and Contract Forms

- Section 7 - Conditions of Contract
- Section 8 - Contract Forms

- 5.2 The Bidder is expected to examine all instructions, forms, terms, and specifications in the bidding document and to furnish with its Bid, all information or documentation as is required by the RFB/ bidding document.

- 6.1 Electronic- Bidding System (also referred to as e-Procurement or e- Tendering system) as specified in the **BDS** shall be used to manage the bidding process. Only the Bids which are submitted and received through the specified system in conformity with the procedures and requirements specified of **ITB** and **BDS** shall be considered.

- 6.2 The electronic- bidding system specified in the **ITB 6.1** provides for online clarifications. A Bidder requiring any clarification of the bidding document may notify the Employer online or through any other mode if so specified in **BDS**. Clarifications requested through any other mode shall not be considered by the Employer. The Employer will respond to any request for clarification, provided that such request is received prior to the deadline for submission of Bids within a period specified in the **BDS**. Description of clarification sought, and the response of the Employer shall be uploaded for information of all Bidders without identifying the source of request for clarification. Should the clarification result in changes to the essential elements of the bidding document, the Employer shall amend the bidding document following the procedure under **ITB 7** and **ITB 21.2**.

- 6.3 The Bidder is advised to visit and examine the Site where the Plant is to be installed/ Works are to be provided, and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the Bid and entering into a contract for provision of Plant and Installation Services/ construction of the Works. The costs of visiting the Site shall be at the Bidder's own expense.
- 6.4 The Bidder and any of its personnel or agents will be granted permission by the Employer to enter upon its premises and lands for the purpose of such visit, but only upon the express condition that the Bidder, its personnel, and agents will release and indemnify the Employer and its personnel and agents from and against all liability in respect thereof, and will be responsible for death or personal injury, loss of or damage to property, and any other loss, damage, costs, and expenses incurred as a result of the inspection.
- 6.5 If so specified in the **BDS**, the Bidder's designated representative is invited to attend a pre-Bid meeting. The purpose of the meeting will be to clarify issues and to answer questions on any matter that may be raised at that stage.
- 6.6 The Bidder is requested to submit any questions in writing, to reach the Employer not later than one day before the meeting.

Minutes of the pre-Bid meeting, including the text of the questions raised without identifying the source, and the responses given, together with any responses prepared after the meeting, will be notified online through electronic-bidding system. Any modification to the bidding document that may become necessary as a result of the pre-Bid meeting shall be made by the Employer exclusively through the issue of an Addendum pursuant to **ITB 7** and not through the minutes of the pre-Bid meeting. Nonattendance at the pre-Bid meeting will not be a cause for disqualification of a Bidder.

- 7.1 At any time prior to the deadline for submission of Bids, the Employer may amend the bidding document by issuing addenda/ corrigendum/ amendment. The addendum/ corrigendum/ amendment will be in writing and appear on the e-procurement system and through email notification automatically sent to those bidders who have started working on the procurement, or as otherwise specified in **BDS**.
- 7.2 Any addendum/ corrigendum/ amendment issued shall be part of the bidding document and shall be deemed to have been communicated to all the bidders.
- 7.3 To give prospective Bidders reasonable time in which to take an addendum/ corrigendum/ amendment into account in preparing their Bids, the Employer may, at its discretion, extend the deadline for the submission of Bids, pursuant to **ITB 21.2**.

C. Preparation of Bids

- 8.1 The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Employer shall not be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.
- 9.1 The Bid, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and the Employer, shall be written in English. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied

by an accurate translation of the relevant passages into English, in which case, for purposes of interpretation of the Bid, such translation shall govern.

10.1 Under the Single Stage Two Envelope bidding process, the Bid shall comprise two Parts, namely the Technical Part and the Financial Part. These two Parts shall be submitted by the Bidder simultaneously.

10.2 The **Technical Part** shall contain the following:

10.2.1 **Letter of Bid - Technical Part:** prepared in accordance with **ITB 11**;

10.2.2 **Bid Security or Bid-Securing Declaration:** in accordance with **ITB 18**, prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**

10.2.3 **Authorization:** Document authorizing the signatory of the Bid to commit the Bidder, in accordance with **ITB 19.3 or ITB 19.4**, as may be applicable, prepared using the bidder's own format;

10.2.4 **Bidder's Eligibility:** documentary evidence in accordance with **ITB 16.1** establishing the Bidder's eligibility to Bid as per the requirements specified in Section 2/ Section 3;

10.2.5 **Qualifications:** documentary evidence in accordance with **ITB 16.2** establishing the Bidder's compliance to the Qualifications Requirements specified in Section 2/ Section 3, along with duly filled in form for compliance of Qualification Requirements, furnished in Section 4 - Bidding Forms - Technical Part of the Bid;

10.2.6 **Eligibility of Goods/ Works/ Plant and Installation Services:** documentary evidence in accordance with **ITB 16.1**, establishing the eligibility of the Works to be supplied by the Bidder;

10.2.7 **Conformity:** Undertaking on Compliance of terms & conditions of the Bidding Documents including Scope of Services and other related requirements, towards documentary evidence in accordance with **ITB 15.1**, prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**; and

10.2.8 any other document if required as per **BDS**.

10.2.9 In addition to the requirements as aforesaid, Bids submitted by a JV shall include a copy of the Joint Venture Agreement entered into by all members, a Joint Deed of Undertaking and Power of Attorney. The Joint Deed of Undertaking and the Power of Attorney shall be prepared using the relevant form furnished in **Section 4 - Bidding Forms - Technical Part of the Bid**

10.3 The **Financial Part** shall contain the following:

10.3.1 **Price Schedules:** completed prepared in accordance with **ITB 11, ITB 13 and ITB 14**;

10.3.2 any other document if required in **BDS**.